# NEW JERSEY REALTORS®
# OPEN PUBLIC RECORDS ACT
# NOTICE TO BUYERS AND SELLERS

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The New Jersey Open Public Records Act ("OPRA") allows a Buyer or Seller to request documents from a municipality and other governmental entities that may provide important information about a property that the Buyer/Seller is interested in purchasing/selling. Under OPRA, a governmental entity must provide most documents for inspection, copying or examination in response to a request within seven (7) business days, unless a reasonable extension is needed to provide the documents. A request must be for specific identifiable documents and not be for information.

It is recommended that Buyers or Sellers submit an OPRA request for documents relating to a property to the municipality in which the property they are interested in purchasing/selling is located. The request should be submitted as soon as possible in order to allow time to deal with any issues that the documents reveal and because they may affect the Buyers' interest in purchasing the property and the Sellers' decisions about marketing the property. OPRA request forms are available from municipalities, typically on their websites.

Documents a Buyer or Seller may want to request include but are not limited to the following:

1. Open and closed permits for work at the property.
2. Documents regarding any variance pending, granted or denied for the property.
3. Complaints filed by the municipality and other citations for code or other violations at the property.
4. Any pending or finalized assessments for the property.
5. Tax assessors reports or memos regarding the property.
6. Any deed, easement or other restriction of record for the property.
7. Inspections for environmental issues, water wells, sanitary disposal systems and underground fuel tanks for the property.
8. The current certificate of occupancy for the property.
9. Any document indicating if the property is in a flood zone.
10. A list of off-site conditions that may affect the value of the property that is maintained by the municipality pursuant to the New Residential Construction Off-Site Conditions Disclosure Act.
11. The current ordinances passed by the municipality pursuant to the New Jersey Air Safety and Zoning Act if the municipality is in an air safety zone.

Buyers and Sellers understand that important information may be obtained about a property in response to an OPRA request and acknowledge that they have been advised to file such a request.

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